MUTUAL NON-DISCLOSURE AGREEMENT

Standard Corporate Confidentiality Agreement

1. PURPOSE AND DEFINITION OF CONFIDENTIAL INFORMATION

The parties wish to explore a potential business relationship ('Purpose'). Confidential Information includes all proprietary technical, financial, and business materials disclosed by either party, whether in writing, orally, or electronically, marked or identified as confidential.

2. NON-DISCLOSURE AND STANDARD OF CARE

Each receiving party agrees to hold all Confidential Information in strict confidence and prevent unauthorized disclosure using at least the same degree of care it uses for its own confidential property, but never less than reasonable care.

3. PERMITTED DISCLOSURES AND COMPELLED PROCESS

A receiving party may disclose information to its employees and legal advisors who have a strict need-to-know and are bound by confidentiality covenants no less protective than this Agreement. Disclosures required by valid subpoena or legal process are permitted upon prompt prior notice.

4. SURVIVAL OF OBLIGATIONS AND RETURN OF MATERIALS

Confidentiality covenants shall survive for three (3) years from the date of disclosure. Upon written request, the receiving party shall certify the destruction or return of all tangible confidential records within fourteen (14) business days.

5. REMEDIES AND INJUNCTIVE RELIEF

The parties acknowledge that unauthorized disclosure causes irreparable harm for which monetary damages alone would be inadequate. The disclosing party shall be entitled to seek injunctive relief in addition to all other legal remedies.

6. GOVERNING LAW AND VENUE

This Agreement shall be governed by the laws of the State of New York. The parties consent to the jurisdiction of the state and federal courts located in New York County, New York.